

AGREEMENT FOR PROJECT INSPECTOR SERVICES

Whereas, Knowland Inc., (The Company) has contracted into agreement with [Antelope Valley Union High School District](#) (The Client) to provide Project Inspector Services, and whereas [Robert Nelson](#) is engaged as an Inspection Services Firm (The Consultant) providing inspection services for various clients.

Now therefore, this agency agreement is made and entered into at Manhattan Beach, California, this [October 1, 2023](#), by and between Knowland Inc., and [Robert Nelson \(Bob Nelson – Agent\)](#) to provide project Inspector Consulting Services as brokered through Knowland Inc. (Knowland Construction Services) for [Antelope Valley Union High School District](#), or other existing clients of Knowland Construction Services.

AGENCY AGREEMENT AND CONTRACT DUTIES:

1. Consultant agrees to provide continuous Project Inspector / quality assurance consulting services of work for compliance with approved contract documents. Consultant duties are as outlined in Title 24 California Building Code, and as required by current IR regulations of the California Division of the State Architect and as listed in the Master Agreement between the District and Knowland Construction Services.
2. Represent the Client under the guidance of the designee of the District and the Architect of Record and interface in a professional manner with contractors, construction managers, testing labs, District staff, and other licensed professionals involved with the project.
3. Attend all planning, pre-construction conference, project meetings, or meetings as required by the Client.
4. Review project manual and specifications for project inspection requirements and project compliance. Review submittals and materials for project compliance. Review installation of all materials for compliance to contract documents. Assist with scheduling of all Special Inspections performed by the Districts contracted Testing Lab as required by the Testing and Inspections Sheet and as outlined in the Project Specifications. Monitor and log all testing for Torque, Epoxy, Pull Tests and other tests required by the contract documents. Provide all close-out documentation in order to facilitate the timely certification of the project, including all Verified Reports, Testing Documentation, Daily Reports and other important project documentation.
5. The Consultant, Robert Nelson / Bob Nelson – Agent, and the company, Knowland Construction Services, shall each defend and hold harmless each other against any losses, liabilities, damages, injuries, claims, costs, or expenses arising out of, or connected with the provisions of this agreement and the contract documents. Consultant shall be responsible for completing the project for the client. If consultant needs to depart for reasons other than health, a change of address, or reasons not under the Consultant's control, Consultant may be responsible to provide a replacement project inspector, acceptable to the Client and KCS. All employees and personnel working for the Consultant shall be covered by the same terms of this agreement, and Consultant personnel must be approved by the client prior to performing any services under the terms of this agreement.
6. The Agreement shall begin on, or about, October 1, 2023, and remain in effect continuously until project closeout, unless terminated in writing. The project location and Client for this work is at [Antelope Valley Union High School District](#) or other locations as required. Pay rate may be different for other projects, and Consultant shall provide in writing a rate for other projects prior to performing services for other projects. The Consultant or his employees shall not be employed, contract, or engage in business or mutually beneficial relationships, either directly or through an agent, with existing clients of KCS for a period of two (2) years after the dissolution of any contracts through Knowland Construction Services, unless permission is granted prior to such relationships. KCS can use the consultant and projects in RFPs concurrent with the on-going work unless specifically specified by consultant.

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7. Company and Consultant agree that this is an Agency Agreement and Consultant shall maintain all insurance for the benefit of Consultant, including but not limited to any health insurances, worker's compensation, disability insurances, auto insurances, liability insurances or other insurances as deemed necessary by the Client or Company. Consultant and Company shall not hold either party responsible (nor the District or its agents) for any actions other than gross negligence or fraud. Consultant shall hold harmless the Company, [Antelope Valley Union High School District](#), or other KCS Clients and its agents, from any claims, liens, lawsuits, or actions. Consultant agrees he is an independent contractor, that prevailing wage laws do not apply to for DSA Project Inspectors or administrative personnel, and that Client is responsible for his own DIR, DOJ Live-scan or other registrations as required by the client. Consultant is liable for payment and filing of his own taxes for all consultant personnel and employees and shall hold the company harmless for any withholdings by any government agency.
8. Company agrees to pay Consultant the cost of project services billed at the rate as outlined in the addendum, or other compensation as outlined in writing. Consultants shall have his hours approved in writing by a district representative for time worked in support of the project and shall only be paid for hours approved and paid by the client. Consultant shall provide a time sheet which accurately reflects the amount of time allocated to each project performed by all personnel. Consultant may be required to subscribe to Raken for daily reports at a cost of approximately \$15.00/month. Consultant shall provide all necessary cell phones, laptop computers, digital cameras, and equipment, and trade books necessary to maintain proper documentation and administrative functions throughout the duration of the project.
9. Consultant shall provide to the Company and the Client each month all project documentation by the following methods: All documents must be uploaded daily to the Knowland Website Portal. Daily reports, semi-monthly reports, digital weekly photograph reports, and other documentation relevant to the project including close out documentation shall also be maintained on site in professional binders with KCS covers. Consultant agrees to upload documents to the KCS portal on a daily basis including generating the portal monthly report and to maintain all documentation in a professional and workmanlike manner. KCS may withhold payment if documentation is not uploaded and current prior to billing periods. All documentation shall be turned over to the District at the end of the project.
10. Overtime shall be billed at a standard rate as outlined in the clients contract with KCS. Hours billed for services shall include only hours worked in support of the project and only as approved in advance by the District. Consultant rate shall not be modified unless the District agrees to modify the KCS agreement. This Agency Agreement is intended to be a contract for full time work or part-time work for the contract duration. Consultant's time sheet shall be verified & approved by the Client prior to submission to the Company. Company shall pay consultant for all hours billed and approved by the District on the company's behalf.
11. Terms and conditions for additional or part-time projects shall be negotiated separately and may be different than the terms for this agreement and shall be in writing. All revisions or adjustments shall be made by an Addendum signed by both parties and attached to this agreement. Addendums supersede the body of the original agreement.

Knowland Construction Services
Chris Knowland – Agent

Robert Nelson
Bob Nelson – Agent

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ADDENDUM

Consultant: Robert Nelson

District: [Antelope Valley Union High School District](#)

Project: Lancaster High School Alterations to 3-Buildings #03-120212

Rate: \$63 p/hr.

Terms: Project is on a part-time basis. To be billed in (4) increments per site visit (includes drive time). IOR to provide a Daily Report for each site visit that is billed. Any project paperwork must be uploaded to the KCS portal and stored by the IOR.

Knowland Construction Services
Chris Knowland – Agent

Robert Nelson
Bob Nelson – Agent